IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC OF SRI LANKA.

e.A.(PHC)Appeal No. 71/2014
P.H.e. Trincomalee Case
No. 207/2010 (Rev)
M.e. Trincomalee Case
No. 19726/209

In the matter of an ApEeal against the judgment by the Provincial High Court Trincomalee in terms of Article No.138 & 139 of the Constitution of the Democratic Socialist of Sri Lanka.

Jayapalan Iruthayamarie
No.12G8/1, Palaiyoothu,
Trincomalee.
Respondent-Petitioner-Appellant

Vs.

Urban Development Authority, "Sethsiripaya" ,
Sri Jayawardenapura, Kotte, Battaraumlla.
Petitioner-Respondent- Respondent

BEFORE

COUNSEL

WRITTEN SUBMISSIONS TENDERED ON

DECICED ON

JANAK DE SILVA,J. &
ACHALA WENGAPPULI, J.

N. P. Ganeshwaran for the Respondent-Petitioner-Appellant
Ishan Ratnapala 5C for the Petitioner-
Respondent-Respondent.

01-11-2018(by the respondent)

01st March, 2019

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ACHALA WENGAPPULI, J.

The Applicant-Respondent-Respondent (hereinafter referred to as
the "Respondent") made an application under Section 28A(3) of the Urban Development Authority Act No. 41 of 1978 seeking an order of demolition and his entitlement to recover the cost of demolition against the Respondent-Petitioner-Appellant (hereinafter referred to as the "Appellant") upon her failure to comply with a direction under Section 28A(1).

After an inquiry by the Magistrate's Court of Trincomalee into the
said application under case No. 19726/5/2009, an order of demolition was issued on 19.04.2010, as prayed for by the Respondent. The Appellant

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sought to set aside the said order by invoking revisionary jurisdiction of the Provincial High Court of the Eastern Province holden in Trincomalee under Case No. HCT/Rev /207/2010.

At the conclusion of the inquiry before the Provincial High Court,
the Appellant's application was dismissed by the order dated 31.07.2014 after affirming the order of the Magistrate's Court.

Being aggrieved by the said order of dismissal, the Appellant now seeks to set it aside by invoking appellate jurisdiction of this Court.

The Appellant, having obtained her copy of the appeal brief upon . noticed by this Court, was represented on the date of hearing of her
appeal. Since the order of the Magistrate's Court was made in Tamil language, the Appellant was directed to provide an English translation, which she did on 09.10.2018, in compliance of the said direction of Court.

When this appeal was taken up for hearing on 12.12.2018, the parties indicated their willingness to dispose the matter on written submissions and the Appellant was directed to tender her written submissions on or before 31.01.2019 since the appeal was fixed for judgment today.

However, the Appellant thereafter opted not to file any written submissions in support of her appeal.

Nevertheless this Court would consider whether there is any merit
in the appeal of the Appellant.

It appears that her position before the Provincial High Court is the Respondent has failed to annex the Gazette by which the development area of Trincomalee has been demarcated. Due to this failure it was

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contended by the Appellant that the Respondent has failed to establish the property on which the disputed development work was carried out is in fact located within the development area of Trincomalee.

The Provincial High Court, having considered the complaint of the Appellant, taken note of the sketch by which the Respondent has clearly shown the illegal construction on the premises bearing assessment No. 1208/1, Palaiyuthu, Trincomalee, which was located within the development area and thereafter proceeded to dismiss the revision application. The Court ruled that the Magistrate's Court could take judicial notice of the Gazette by which the development area of Trincomalee was declared. In coming to the said conclusion, the Provincial High Court relied on the reasoning of the judgment in Arumugam v Range Forest Office, Deniyaya (1986) 2 Sri L.R. 398 where it was held that:-

" ... it is not necessary that notification should be
tendered as exhibits in the case for the Court has to
take judicial notice of them".

In fact, the Gazette No. 690/3 of 26.11.1991 by which the demarcation of the development area of Trincomalee was tendered to the Provincial High Court by the Respondent, annexed to his objections, marked as R4.

In view of the above considerations, we are of the opinion that the appeal of the Appellant is without any merit and therefore ought to be dismissed.

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We affirm the orders of the Courts below and make further order

dismissing the appeal of the Appellant with costs fixed at Rs. 25,000.00.

JUDGE OF THE COURT OF APPEAL

JANAK DE SILVA, J.

I agree.

JUDGE OF THE COURT OF APPEAL

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